CIVIL PROCEDURE: Section 2
Fall 2026
Professor Miller

SYLLABUS FOR THE COURSE

Reading Materials

All page references are to Friedenthal, Miller, Sexton, Hershkoff, Steinman & McKenzie, *Civil Procedure*, Thirteenth Edition (2022) or to the 2026-2027 Supplement to the casebook by the same authors. Students must bring the casebook and supplement to each class session.

The table below is a rough outline of what will be covered each week—we may move faster or slower depending on how long class discussions run. However, because this class is scheduled for three days in a row, the schedule below is a good guide of what you should aim to read before the first class each week.

The TAs will periodically email the class with estimates of the upcoming cases that they expect to be covered in class.

ANY INSTRUCTION ON ANY ASPECT OF THE COURSE IN CLASS OR IN A CLASSWIDE EMAIL SUPERSEDES THIS SYLLABUS.

Class preparation

Read and study the assigned material carefully.

It is highly recommended that you read the notes following each case, even if there are no squibs (notes cases) specifically assigned.

Classroom expectations

All students are expected to be prepared on the scheduled material and will be expected to participate voluntarily or by being called on as class discussion proceeds.

If you miss a class for an excused reason (e.g. religious observance, illness), you must email Professor Miller's assistant, Kristin Silberman, Silberman@mercury.law.nyu.edu, to gain access to that class's recording.

Office Hours

Each TA will hold a weekly office hours session in Golding Lounge according to the tentative schedule below:

Katherine: Mondays 1:30-2:30pm
Robbie: Mondays 2:30-3:30pm
Emile: Tuesdays 2:00pm-3:00pm
Jocelyn: Wednesdays 1:30pm-2:30pm
Matt: Thursdays 4:15pm-5:15pm

Additionally, there will be class-wide review sessions led by the TAs after each unit.

Key: [S]: Cases will be discussed interactively with students
[L]: Cases will be discussed through lecture
Principal cases are underlined. The so-called "squib" cases (also known as "notes cases," located in the pages between principal cases in the casebook) are those not underlined below.

Week 1 (Week of Aug 24)	Chapter 1 (Survey of the Civil Action) and Chapter 2 (Jurisdiction Over Persons and Property)	Read pages 1-29, *Capron*, p. 29, and Sections 1 and 2 of Article III of the United States Constitution before the first class. *Tickle*, p. 31. Introduction to "jurisdiction", *Pennoyer* [S], p.79.
Week 2 (Week of Aug 31)	Chapter 2 (Jurisdiction Over Persons and Property)	*Hess* [S], p. 90, *International Shoe* [S], p. 95, *McGee* [S], p. 102, *Hanson* [S], p. 103, *Gray* [S], p. 107,
Week 3 (Week of Sep 7)	Chapter 2 (Jurisdiction Over Persons and Property)	*World-Wide Volkswagen* [S], p. 114., *Keeton* [L], p. 124, *Calder*[L], p. 126 *Kulko* [L], p. 126, *Burger King* [S], p. 127, *Asahi* [S], p. 134, *McIntyre (Nicastro)* [S], p. 143., *Walden* [L], p. 159, *Bristol-Myers Squibb* [L], p. 173
Week 4 (Week of Sep 14)	Chapter 2 (Jurisdiction Over Persons and Property)	*Ford*, p. 175, *Goodyear* [L], p. 162 *Benguet* (discussed in *Goodyear*)[L], *Helicopteros* (discussed in *Goodyear*) [L], p. 162, *Daimler* [L], p. 167, *BNSF Railway Co.* [L], p. 170, *Insurance Corp. of Ireland* [L], p. 194, *Bremen* [L], *Carnival Cruise Lines* [L], p. 198, *Zippo* [L], p. 200, *Shaffer* [S], p. 210, *Burnham* [L], p. 223, *Mallory* [S] (PDF), Supplement, p. 422.
Week 5 (Week of Sep 21)	Chapter 3 Notice and an Opportunity to Be Heard	We will examine *Mullane* [S], p. 237 very carefully. We will go over Federal Rule 4 and service of process, p. 251 [L]. *Szukhent* [L], p. 257, *Wyman* [L], p. 276, *Sniadach*[L], p. 279, *Fuentes* [L], p. 280, and *Doehr* [L], p. 286 will take little class time. Be sure to become familiar with Federal Rules of Civil Procedure 4 and 12. They are in the Supplement. Also read pages 278-296 in the casebook,

		with care, although this material will not be dealt with by case presentation in class.
Week 6 (Week of Sep 28)	Chapter 4 (Subject-Matter Jurisdiction)	Introduction to diversity jurisdiction [L], *Lacks* [L], p. 297, Article III of the Constitution [L], *Strawbridge* [L], p. 305, Section 1332[L], *Perry* [L], *A.F.A. Tours* [L], p. 318. Read the statutes identified in the casebook carefully as we proceed through the Chapter, especially 28 U.S.C. §§ 1331, 1332, 1367, and 1441. These are in the Supplement. Subject matter jurisdiction will reappear and be the focus of class discussion at various points during the remainder of the course. Introduction to federal question jurisdiction [L], Section 1331[L], *Mottley*, p. 331, *Eliscu* [L], *American Well Works* [L], p. 339, *Shoshone* [L], p. 339, *Smith* [L], p. 340, *Grable* [S], *Gunn* [L]
Week 7 (Week of Oct 5)	Chapter 4 (Subject-Matter Jurisdiction) and Chapter 5 (Venue, Transfer, and Forum Non Conveniens)	Section 1331[L], *Gibbs* [S], *Aldinger* [L], p. 359, *Kroger* [L], p. 360, *Finley* [L], p. 361, Section 1367[L], *Exxon* [S]. Removal [L], Section 1441, *Shamrock Oil* [L], p. 381, *Home Depot* [L], p. 382, *Bechtel* [L], p. 383, *Wild Oats* [L], p. 384, *Dart Cherokee* [L], p. 385. We will move through Chapter 5 rather quickly. Focus on Venue, *Reasor-Hill* [L], p. 395, *Bates* [L], p. 404, *Livingston* [L], p. 408, *Hoffman* [S], p. 410, and *Piper Aircraft* [S], p. 421. Read 28 U.S.C. §§ 1391, 1404, 1406, and 1407 [L], in the Supplement.
Week 8 (Week of Oct 12)	Chapter 5 (Venue, Transfer, and Forum Non Conveniens) and Chapter 6 (Ascertaining the Applicable Law)	Continuing venue *Erie* [S], p. 445, *Swift* [L] (discussed in *Erie*), *Black & White Taxicab* [L] (discussed in *Erie*)
Week 9 (Week of Oct 19)	Chapter 6 (Ascertaining the Applicable Law)	*York* [S], p. 454, *Ragan* [L], p. 460, *Woods* [L], p. 461, *Cohen* [L], p. 461, *Byrd* [S], p. 462, *Hanna* [S], p. 468, *Sibbach* [L], p. 477.
Week 10 (Week of Oct 26)	Chapter 6 (Ascertaining the	*Walker* [L], *Stewart* [L], Federal common law [L], *Dice* [S], *Berk* [S] (PDF), Shady Grove[L], Gasperini[L]

	Applicable Law) + beginning of Chapter 8 (Modern Pleading)	Start Modern Pleading: Only the following cases will be dealt with formally in class, some of them rather quickly: *Gillispie* [L], p. 606, *Dioguardi* [L], p. 608, *Conley* [L], p. 612, *Świerkiewicz* [L], p. 614.
Week 11 (Week of Nov 2)	Chapter 8 (Modern Pleading)	*Twombly (Bell Atlantic)* [S], p. 617, *Iqbal (Ashcroft)*, p. 628, *Tellabs* [L], p. 654, *Ziervogel* [L], p. 659, *Garcia* [S], p. 664, *Krupski* [L], p. 695, and *Surowitz* [S], p. 699. The entire chapter must be read, however, because the entire chapter, including pretrial process and pleading, will be the basis of classroom discussion. Also pay close attention to Federal Rules 8, 9, 11, 12, and 15 in the Supplement.
Week 12 (Week of Nov 9)	Chapter 9 (Joinder) and Chapter 10 (Class Action)	Read the entirety of these chapters. The material will be covered through classroom discussion rather than case presentation. The emphasis during our class meetings will be on the various joinder devices discussed in Chapter 9 and the class action materials in Chapter 10. Examine the governing Federal Rules relating to joinder of claims and parties and class actions in the Supplement and review 28 U.S.C. §§ 1332(d), 1407, 1453. The material from p. 799-869 provides a good overview of class action practice. No classroom time will be spent on interpleader and intervention. We will focus on Chapter 9 this week and Chapter 10 the following week. Introduction to joinder of claims and parties [L] Examination of the joinder devices [L]
Week 13 (Week of Nov 16)	Chapter 10 (Class Action)	Introduction to class actions and multidistrict litigation [L] Class action prerequisites [L], Rule 23, *Hansberry*, p. 804, *Walmart* [L], p. 810, Rule 23, *Amchem* [L], p. 853, *Ortiz* [L], p. 860, *Philips Petroleum (Shutts)* [S], p. 873, *Mussat* [L], p. 883, *TransUnion* [L], p. 872
Week 14 (Nov 24)	Chapter 13 (Adjudication Without Trial or by Special Proceedings):	Focus on the Introduction to Summary Judgment [L], Cross [L], Celotex, p. 1017, and the notes on Anderson [L], p. 1027, and Matsushita [L], p. 1029. Read Federal Rule 56 and the note cases on pp. 1031-1036 carefully. You need not read the material on dismissal of actions and default judgment on pages 1036-1046.

A.R.M.
August, 2026